

26AVCV00615 26AVCV00615

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 26AVCV00615 Hearing Date: June 25, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

KATHERINE ADAMS,

Plaintiff,

v.

CEDARS-SINAI MEDICAL CENTER; PREMIERE REHABILITATION & WELLNESS CENTER OF LANCASTER, LP dba
THE ELLISON JOHN TRANSITIONAL CARE CENTER; and DOES 1-60, inclusive,

Defendants.

Case Number 26AVCV00615

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: June 25, 2026

Dept. A-14

Judge William H. Forman

I. Background

Justin Vitug (Vitug) and Javaheri & Yahoudai, APLC move to be relieved as counsel for Plaintiff Katherine Adams (Plaintiff).

On April 24, 2026, Plaintiff filed a complaint against Cedars-Sinai Medical Center, Premiere Rehabilitation & Wellness Center of Lancaster, LP dba The Ellison John Transitional Care Center, and Does 1 through 60, inclusive (collectively Defendants). The complaint asserts three causes of action for (1) dependent adult abuse and neglect, (2) violation of resident rights, and (3) negligence. Specifically, Plaintiff claims while she was a patient in the care and custody of Defendants, Defendants withheld custodial care and service, resulting in Plaintiff developing severe pressure sores and ulcers and deterioration of her skin condition, and failed to effectively develop, implement, and modify care plans for Plaintiff's needs. (Compl., ¶¶ 46-48, 52, 55.)

No responsive pleading has been filed by Defendants, and Plaintiff has taken no other action in the case to date.

On May 8, 2026, Vitug and his firm, Javaheri & Yahousai, APLC moved to be relieved as counsel for Plaintiff.

II. Legal Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362 (a) – (e).)

"If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) The service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(Id. at 3.1362(d).)

"Current" means that "the address was confirmed within 30 days before the filing of the motion to be relieved." (Id.) "Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (Id.) "If the service is by

mail, Code of Civil Procedure section 1011, subd. (b) applies.” (Id.)

III. Discussion

Application – Counsel moves to be relieved as counsel for Plaintiff.

Here, Vitug has satisfied the requirements of rule 3.1362. Vitug has directed the Notice of Motion and Motion to Be Relieved as Counsel to Plaintiff at her last known address. It is accompanied by a supporting declaration on form MC-052, in which Vitug states that the attorney-client relationship has broken down to the extent that continued representation of Plaintiff is no longer feasible and he is unable to effectively represent Plaintiff’s interests or fulfill his professional responsibilities under the circumstances. Vitug further states that despite his reasonable and repeated efforts, Plaintiff has not maintained communication with counsel and has failed to respond to inquiries necessary to prosecute the action and comply with obligations and deadlines.

A proposed order using form MC-053 has been filed with the Court which specifies the hearing date scheduled in the action, and a proof of service of all moving papers has been filed, stating Plaintiff was served via certified mail. Vitug’s declaration states that he has served Plaintiff’s last known address and has been unable to confirm the address is current or to locate a more current address for Plaintiff after (1) mailing the motion papers to Plaintiff’s last known address, return receipt requested, (2) calling the client’s last known telephone number, and (3) conducting a skip-trace of the Plaintiff for updated contact information. No additional service is required as no other parties or individuals have appeared in the case.

The Court finds that good cause exists to relieve Vitug and his law firm, Javaheri & Yahoudai, APLC from representation of Plaintiff Katherine Adams. As no Opposition has been filed, no responsive documents have been filed on behalf of Defendants, the only hearing set is a Case Management Conference on September 16, 2026, and no trial date has been set, Vitug’s relief will not cause prejudice to any party.

Accordingly, Attorney Justin Vitug and Javaheri & Yahoudai’s Motion to be Relieved as Counsel for Plaintiff Katherine Adams is GRANTED.

IV. Conclusion

Justin Vitug and his law firm Javaheri & Yahousai, APLC’s Motion to Be Relieved As Counsel is GRANTED.